

CALIFORNIA LEGISLATURE — 2025-2026 SIMULATION SESSION

SENATE BILL

NO.59

Introduced by Senator Melissa Hurtado

September 20th, 2025

This bill establishes protections for agricultural workers and mandates education and outreach programs to ensure they are informed of their rights and existing labor laws, helping prevent violations.

LEGISLATIVE COUNSEL’S DIGEST

SB 59, as introduced, Hurtado. The Farmworkers Protection Act.

Under the Immigrant Worker Protection Act (AB 450, 2018), employers cannot let ICE into nonpublic workplace areas or share employee records without a judicial warrant or court order. Workers must also be notified if their records are reviewed. More recently, new laws have expanded protections. The No Secret Police Act (SB 627, 2025) requires ICE officers to show their faces and IDs. The Safe Haven Schools Act (AB 49, 2025) and SB 98 (2025) prevent ICE from entering schools without a warrant and require notice if agents are present. SB 805 and SB 81 (2025) provide similar protections for hospitals.

Farmworkers remain vulnerable to immigration enforcement while laboring in agricultural fields. Unlike schools, hospitals, or traditional workplaces, these open worksites lack legal safeguards, leaving workers exposed to sudden and disruptive ICE raids. This bill closes that gap by requiring a warrant order and a required notice if agents are present before immigration enforcement actions may take place in agricultural fields. In addition, it provides for education outreach to farmworkers to ensure they are informed of their rights and existing labor laws. To support implementation, education, the sum of one million dollars (\$1,000,000) is hereby appropriated from the General Fund to the Labor Commissioner’s Office, to be allocated in consultation with the Attorney General’s Office.

Vote: Majority

Appropriation: No

Fiscal Committee: Yes

Local Program: No

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SEC .1. This act shall be known and may be cited as The Farmworkers Protection Act.

SEC. 2.

(a) Approximately 800,000 farmworkers are employed in California annually, with over 50% estimated to be undocumented, making the sector highly vulnerable to labor disruptions from ICE raids.

(1) Unlike schools, hospitals, and traditional workplaces, agricultural fields lack statutory protections requiring judicial oversight before ICE enforcement actions.

(A) It is the intent of the Legislature to ensure that immigration enforcement in agricultural fields is conducted only pursuant to a judicial warrant and prior notice, thereby allowing workers to continue carrying out their work safely.

(B) To support implementation, education, and compliance, the sum of one million dollars (\$1,000,000) is hereby appropriated from the General Fund to the Labor Commissioner's Office, for allocation in consultation with the Attorney General's Office.

SEC. 3.

(a) Labor Commissioner's Office, shall conduct outreach and education programs for farmworkers and employers regarding their rights such as responsibilities and limitations under this act and laws in place.

(1) The California Attorney General's Office shall Coordinate with federal authorities when enforcement actions are planned and advise on any legal disputes or challenges arising under this act and previous labor laws.

(2) Worker Protections

(A) Farmworkers have the right to be notified if ICE enforcement is planned in their work area, except in cases of exigent circumstances as defined by law.

(B) Employers must cooperate with state oversight but shall not voluntarily grant ICE access to agricultural fields or employee records, unless presented with a valid warrant or subpoena.

SEC. 4.

(a) No immigration enforcement agency, including Immigration and Customs Enforcement (ICE), shall conduct enforcement actions in agricultural fields without first presenting a valid warrant.

SEC. 5.

(a) This Act shall become effective on January 1, 2026.